

DISTRICT COURT, SAN MIGUEL COUNTY, COLORADO 305 W. Colorado Avenue, Telluride, CO 81435 Telephone: (970) 369-3310	DATE FILED April 16, 2025 10:36 AM FILING ID: EFAD2B708EBED CASE NUMBER: 2024CV8
Contestor: Emily Masson v. Contestees: The Board of County Commissioners of San Miguel County, Colorado, et al.	▲ COURT USE ONLY ▲
Sam D. Starritt, #27876 STARRITT LEGAL LLC 222 North 7 th Street, Suite A-1 Post Office Box 1164 Grand Junction, Colorado 81501 Telephone: 970.335.8131 Email: sam@starrittlegal.com	Case Number: 2024CV0008 Division: 5
CONTESTOR EMILY MASSON'S TRIAL BRIEF	

Contestor, Emily Masson (Masson or Contestor), through counsel, STARRITT LEGAL LLC, for her trial brief in this matter, submits as follows:

I. INTRODUCTION

This matter pertains to referred Ballot Measure 3A, which appeared on the November 2024 general election ballot. Electors within the San Miguel Authority for Regional Transportation (SMART) were eligible to vote on the measure. The SMART district includes Dolores County.

Following Contestor's motion to dismiss the Towns of Telluride and Mountain Village (also within the SMART District) and claims arising under the Fair Campaign Practices Act, C.R.S. § 1-45-101, *et seq.*, the trial of this matter presents two remaining constitutional issues: (1) whether Contestees provided sufficient reasonable notice of ballot measure 3A for opponents to submit statements of opposition, and (2) whether Measure 3A's required TABOR ballot notice

under the COLO. CONST. Art. X § 20(3)(b) was misleading. All other issues raised in Masson’s initial Statement of Claims are waived.

Notice. The evidence will show that the Contesees provided only 12 to 24 hours of public notice that Ballot Issue 3A would be placed on the November 2024 ballot before the deadline to submit comments at 12:00 pm, September 20, 2025. TABOR mandates that at least one comment in favor, and one comment opposed, to taxing or debt measures like 3A be published together with the constitutionally required notice (TABOR Notice). COLO. CONST. Art. X § 20(3)(b)(v).¹ Although it is true there is no obligation to “drum up” letters of opposition if no such letters are received, the failure to provide sufficient time for an opposition statement to be presented, especially when the favorable statement was written by an “insider,”² is a substantive violation of the constitutional requirement. It is the same as if no TABOR notice was given at all because, under these circumstances, it implies there was no opposition or that no one cared enough to oppose, when the truth is that there simply wasn’t sufficient time to do so.

Misleading Language. Based on the pleadings filed in this case, despite pre-election language and language in 3A itself to the contrary, the Contestees have taken the position that 3A was intended to, and permits, taxing authority only – not approval for the acquisition of future long-term debt that will be necessary to re-construct the Gondola entirely. Even so, there was not acceptance of Contestor’s statutory offer of settlement, or some variant thereof, the Contestees

¹ Section 20 of the Colorado Constitution is entitled, the “Taxpayer Bill of Rights,” commonly known as TABOR (not named for the Colorado historical figure, Horace Tabor).

² The evidence will show that the single statement published was written by the Mayor Pro-Tem of Mountain Village, who also participated in earlier Gondola Committee meetings and oversaw the unanimous consent passage of the TMV Resolution supporting the Ballot 3A measure the day before he wrote his supportive letter.

remained silent. (Ex. 24.) The evidence will show that Contestor reasonably believed and asserted that 3A was an unlawful attempt to acquire authority for long-term debt that will be necessary to construct an entirely new gondola system, since the promotional material and public meetings gave the impression that a “yes” vote for 3A meant a new Gondola, not just the “stop gap” measure that it is.

Therefore, Contestor seeks a court determination that insufficient notice was provided to the general public and that the TABOR notice was misleading regarding what a vote in favor of the measure would accomplish. Contestor asserts that under the Colorado Constitution, the vote on Measure 3A should be overturned and set for a new ballot with proper notice without misleading statements on the effect of 3A.

II. PROCEDURAL HISTORY

Masson is a registered elector in Telluride, San Miguel County, and is an eligible elector within the district boundaries of SMART. She is a member of a large community group formed after the Ballot 3A campaign, concerned with government entities’ unfair and misleading processes supporting Ballot Measure 3A. She filed her complaint in this matter on November 26, 2024, within ten days after the “official survey of returns [was] filed with the designated election official.” C.R.S. § 1-11-213(4).³ Masson verified the original complaint with the affirmation that it was made under the penalties of perjury, but the initial statement was not made in front of a notary public. Following an order of this court on December 3, 2024 (Order dated 12/3/24),

³ The election results in _____ were certified on November 21, 2024, but were not certified by the Dolores County until November 26, 2024. See _____.

Masson filed an amended statement with the verification of a notary public on December 3, 2024.⁴ Despite initially alleging several other claims but being disallowed from amending her written statement to narrow the issues, Masson now proceeds under the constitutional issues described above.

III. FACTUAL BACKGROUND

a. Historical Perspective.

The Telluride Gondola was built in 1996 under an original funding agreement that required the Town of Mountain Village (TMV), the Town of Mountain Village Owners Association (TMVOA), and Telluride Ski & Golf (“TELSKI”) to fund operating costs through 2027. (See 1st Amend and Restated Gondola Operating Agreement dated July 28, 1999 [www.tmvoa.org/documents/governing-docs].)

Because the funding requirement ends after December 2027, TMV, TMOA, TELSKI, the Town of Telluride (TOT), and San Miguel County formed the Gondola Long Term Planning Committee to discuss its future, both for funding operations and for a possible replacement of the entire system. The entities entered created the Gondola Leadership Committee for discussion regarding options for the Gondola. By 2022, the Gondola Leadership Committee determined they would recommend replacing the Gondola rather than continuing repair. (Exs. 12, 13.) According to the Committee, the purpose of a proposed measure was to allow SMART to pay projected “debt

⁴ Although the Contestees assert the complaint was not timely because it was not notarized initially, the Contestor suggests that the verification under oath was all required to comply with CRS §1-11-213. See Motion to Strike Motions to Dismiss at pp. 6-7. Additionally, the County of Dolores did not certify their election under November 26, which means even the December 3, 2024, filing was timely.

service” as well as “operations” for a future cost of more than \$65 million for the construction of a new system. (Ex. 13.)

b. November 2023 Cost Sharing IGA.

To create Ballot Measure 3A, the entities of TMV, TMVOA, TOT, TELSKEI, and the County entered into an IGA to share costs. (Ex. 5.) The two-year budget for the IGA was \$956,000 and included hiring campaign consultants and experts for “election services.” Under the IGA, Contestee SMART engaged Kerry Donovan and Ulysses Strategies, an election and campaign consulting firm, to assist with messaging the issues surrounding the Gondola requiring voter approval. (Ex. 18.) Ulysses describes itself as having the experience of:

running a variety of campaigns from grassroots races with zero money to multi-million independent expenditures and everything in between. . . We can help you . . . Create your win plan. . . Hire and manage consultants. . . Build your coalition. . . Develop policy and win endorsements. . . Communicate your message. . .

(See <https://www.ulyssesstrategies.com>)

Kerry Donovan worked for and was paid by SMART per the IGA cost-sharing provisions from October 2023 until September 9, 2024, when she transitioned to be a part of the “Friends of the Gondola” committee, the only yes on 3A organization. (Ex. 20 [registered agent email address].)

At the December 2023 meeting, Ms. Donovan suggested the proposed ballot measure for SMART would have a hard time passing if it only focused on having more people pay for the same Gondola service. She surmised that to be successful, the campaign should be about more than a “spreadsheet” issue (i.e. who pays for operating expenses.) The meeting moderator introduced the discussion by stating:

You spoke really eloquently about a spreadsheet vote versus a vote that gets people excited. So, we've got the Dream Team, a really strong campaign team put together for a reason. We want to make sure we're following their advice. And we know what their advice is. So hopefully that's enough of a setup.

Ms. Donovan responded:

Yeah, I think I've been as blatant as before. 'going to be a lot harder to get people to vote for a spreadsheet, which is what this vote is without some capital improvement or collection happening. Right? If you just say this is just an operating and then maintenance vote, I think it's hard for people to visualize that and engage with it on an emotional level, even though we really love our lift opps and we want to make sure we're paying them great salaries.

So I think the building of the new gondola and those improvements is what will really engage people, but I love actually framing of it as a savings account. I think that's a very clever way that I certainly hadn't thought of framing it. It can also be thought of as your, you know, your down payment versus your mortgage rate.

(Ex. 29 & 34, April 15, 2024 Subcommittee Meeting at 01:11:50.)

At the July 15 Gondola Subcommittee meeting, Ms. Donovan agreed to help work on the draft language of the resolution that all the public entities eventually would pass and encouraged all the entities to get the resolution on the calendar for a vote. (Ex. 31 & 35, July 15 Subcommittee Meeting] at 45:08.) Ultimately, a draft resolution was prepared with Donovan and Ulysses' assistance. (Ex. 33.)

c. Ballot Title and TABOR Notice

Ultimately, the following language appeared on the TABOR Notice and the ballot for 3A:

Shall San Miguel Authority for Regional Transportation ("SMART") taxes be increased \$8,200,000 in 2025 and by whatever additional amounts as are raised annually thereafter, for the purpose of maintaining and improving gondola and SMART transportation services, including:

- Providing necessary funding to continue gondola service between Telluride and Mountain Village and prevent a shutdown of the gondola after December 31, 2027;
- Continuing to provide gondola service that reduces traffic and greenhouse gas emissions; and

- Maintaining and improving the level of SMART’s bus transit service; with 87.8% of the **new revenue raised annually pursuant to this question being used for the purpose of funding gondola capital improvements** and paying for the operation and maintenance of the gondola.

And with the remaining new revenue being used by SMART for purposes consistent with its mission, from the levy of a visitor benefit tax of up to 1.25% on lodging, an additional sales tax of up to 0.82% (8.2 cents on each \$10.00 purchase) and an additional mill levy of up to 1.336 mills; and shall all amounts received by SMART from such taxes and any other revenue sources and the earnings thereon be collected and spent without limitation or condition as a voter-approved revenue change under article x, section 20 of the Colorado constitution, or any other law?

(Ex. 1 (emphasis added).) The emphasized language, together with the campaign messages, gave the false impression that a “yes” vote on 3A was all that was required to approve a new Gondola system without further vote by the public.

d. Friends of the Gondola (FOG).

Ms. Donovan attended most of the Gondola Leadership Committee and Gondola Leadership sub-committee meetings and was paid \$4,050 monthly, which the IGA funded. (Exs. 5 & 19.) On September 11, 2024, Ms. Kerry Donovan created the Friends of the Gondola Issue Committee in support of 3A, with Mr. Ron Allred as the agent for service. (Ex. 20.)

IV. CONTESTOR MASSON TIMELY FILED HER ACTION PURSUANT TO CRS §1-11-201 AND RAISED ISSUES UNDER THE ENFORCEMENT CLAUSE OF ART X § 20 (1)

Masson timely filed this action within ten days of the election under C.R.S. § 1-11-201 and COLO. CONST. Art X § 20(1). This fact allows the Contestor to challenge the adequacy and timing of the TABOR notice and ballot language sent to the electors. In *Cacioppo v. Eagle County School Dist.* 92 P3d 453, 468-69 (Colo. 2004), the Supreme Court found the Contestor’s causes of action for challenges regarding the form and content of the ballot notice were subject to a timely filing of

a statement of intent to contest the election of a ballot issue under C.R.S. § 1-11-213(4), as was done in this case.

Therefore, Contestor asserts the two following claims as to TABOR ballot notice deficiency:

- The constitutionally required TABOR notice was misleading TABOR in its description of what a YES vote was approving, and
- Contestees failed to give opponents reasonable time to submit a statement of opposition, as mandated.

This challenge is separate and distinct from any challenge to the ballot *title*, which is controlled by a five-day statute under C.R.S. § 1-11-203.5, *Cacioppo v. Eagle County School Dist.* 92 3d 453, 468-69 (2004). This period would have run on September 12, five business days after the September 5, 2024, SMART board meeting approving the resolution in favor of the measure. However, SMART provided no public notice that the Ballot Title was set on September 5, until September 19, in a press release that was two weeks after the Ballot Title was set.

Also importantly, the constitutionally mandated TABOR Notice was also misleading in and of itself. Challenges to the TABOR Notice are not subject to the limitations of under CRS § 1-11-203.5. In *Cacioppo v. Eagle County School District.*, 92 P. 3d 453, 468 (Colo. 2004), the contestor failed to file a challenge to the subject ballot measure under C.R.S. §1-11-203.5 (5-day limitation period) or under C.R.S. §1-11-213 (10-day limitation period). One of the challenges involved a claim of misleading and incorrect required financial data in the TABOR notice, which the plaintiff argued was a substantive issue not covered by either statute of limitation. (*Id.* at 468.)

The court first noted because the plaintiff’s “claim goes to the information provided in the constitutionally required notice and not the ballot title, we determine that section 1-11-203.5 is

inapplicable and does not bar the claim.” (*Id.* at 468-469 (emphasis added).) In other words, since the TABOR notice has its constitutional requirements, a validly filed action under §1-11-213 can attack the constitutional deficiencies of the notice itself. Because the evidence will show that the Tabor Notice, compiled with the pre-election marketing, created a justifiably false impression among the voters, including Contestor, may be challenged under Colorado’s election contest statutes.

V. CONTESTEES’ FAILURE TO PROVIDED SUFFICIENT TIME FOR SUBMITTING AN OPPOSITION STATEMENT IS A SUBSTANTIVE VIOLATION OF ART. X § 20

COLO. CONST., Art. X § 20(3)(b)(v), mandates that the following be included in any TABOR Notice: “two summaries, up to 500 words each, one for and one against the proposal, of written comments filed with the election officer by 45 days before the election.”⁵ The TABOR Notice in this case included only a single statement of support, submitted by the Mayor Pro-Tem of Mountain Village the day after moving and obtaining unanimous consent for approval of the Resolution supporting measure 3A, who was also a member of the Gondola Leadership Committee. (Ex. 25 [supporting comment] & 27.)

In *Bruce v. City of Colorado Springs*, 129 P. 3d 988, 991 (Colo. 2006), although the Colorado Supreme Court rejected contestor’s claim that a “tax extension” is a “tax increase” and, therefore, subject to the requirements of TABOR, the decision included an important note relevant to this case. The trial court found that if TABOR applied, there was a serious constitutional

⁵ Contestee SMART asserts in its Answer the correct, but irrelevant, claim “there is no legal requirement for public entities to solicit pro and con statements for the TABOR notice.” (See SMART Answer ¶ 27.) The issue in this case is not a claim that any Contestee should have solicited an opposing view, but that the Contestees, and each of them, failed to provide any reasonable opportunity for opponents to submit an opposing view.

question of whether the public entity failed to “afford the public ‘any reasonable opportunity to further the purposes of [COLO. CONST. Art X, § 20] with the submission of comments.’”

That is the precise issue that exists in this case. Some reasonable period must be given to allow those persons who might oppose a referred ballot measure to submit an opposing statement. The concept of due process (notice and opportunity to be heard) is, or should be, a fundamental precept of the constitutional democracy as it should exist in the United States.

The following timeline demonstrates that adequate notice and opportunity to be heard before the deadline for comments was not given:

- August 21-28, 2024, notice of the upcoming SMART meeting was placed in both the Telluride Daily Planet and the Cortez Journal, indicating that SMART would *consider* placing a ballot measure on the November ballot. (Def. SMART Answer at ¶ 28.)
- On September 5, the SMART board met and unanimously approved placing the measure on the ballot. (Ex. 26 at 4.) This resolution was not recorded with San Miguel County Clerk and Recorder. No public comment or opposition was made at the SMART September 5, 2024, Board Meeting. (Ex. 26 at 4.) The minutes of the September 5 meeting were not posted until the October 10th meeting of the SMART Board. (Ex. 26 at 1.)
- If anyone sought to oppose the language of the Ballot Title set on September 5 for clarity or inaccuracy, such person must file within five days, ending on Tuesday, September 12, 2024. C.R.S. §1-11-203.5).
- Contestee SMART did not identify any public announcements made for the next five business days, ending on September 12. (Def. SMART Answer, ¶ 28.)
- On September 18, San Miguel County passed a resolution supporting Ballot Issue 3A. (Ex. 4.)
- On September 19, the Town of Telluride passed an almost identical Resolution supporting ballot measure 3A. (Ex. 3.)
- On September 19, the Town of Telluride issued a press release on Ballot Measure 3A. (Ex. 9.)

- On September 20, the Town of Telluride issued a press release on Ballot Measure 3A. (Ex. 8.)
- On September 19, the Town of Mountain Village passed the Resolution supporting ballot measure 3A by unanimous consent. (Ex. 3.) Mayor Pro-Tem Scott Pearson making the motion for approval. Mr. Pearson was also a member of the Gondola Leadership Committee as of July 2023. (Ex. 28.)
- On September 19, the Town of Mountain Village issued a press release about Ballot Measure 3A (Ex. 7.)
- On September 19, SMART posted a press release on its website supporting Ballot Measure 3A (Ex. 6).
- Any statement opposing the TABOR notice was due by noon on September 20. (Answer of SMART ¶ 27.)
- The only known timely statement regarding Ballot Measure 3A was by the Mayor Pro-Tem of Mountain Village, Scott Pearson, who brought the motion for unanimous consent of the TMV resolution in support of the measure and was a former Gondola Leadership Committee Member (Ex. 25 and 28). The letter is dated September 20, 2024.⁶
- On September 23, the County of San Miguel recorded its resolution supporting ballot measure 3A with the County Clerk. (Ex. 4)

No Contestee in this action provided any notice, other than the above-referenced press releases, regarding proposed Ballot Issue 3A between September 5 (the date SMART approved 3A for the November election), September 18-19 (the dates of the press releases announcing such approvals) and September 20, 2024 the date that comments were due based on the timing of SMART's September 5 Board Meeting approving the measure. (See § 1-7-903(3) and 1-1-106(5).)

Although the reasonableness of the timing may be fact-specific, those facts in this case demonstrate that reasonable notice **was not** provided since the public had only 12 to 24 hours after

⁶ To be clear, Mr. Pearson had every right to support this measure and did nothing wrong by sending such a letter. However, the fact he has been involved in this process for a long time and oversaw the resolution in support being passed by the TMV means he had every reason to know when he had to have a letter in support supplied. The opponents to this measure had no such prior warnings.

the publication of the notices regarding the entities' resolutions in support of 3A to submit comments by the September 20 deadline. (Exs. 2, 3, 4, 6, 7, 8, 9, 10.) Since Art. X § 20(3) mandates a statement in favor and opposed; it is a substantive constitutional failure by the Contestees to not provide sufficient time for a response and a violation of due process.

VI. THE TABOR NOTICE WAS MISLEADING

a. TABOR Notices must not be misleading

As stated by the Colorado Supreme Court, “[t]he purpose of the title setting process is to ensure that both [the] persons reviewing an initiated petition and the voters are fairly and succinctly advised of the import of the proposed law.” *In re Title, Ballot Title, Submission Clause, & Summary Clause Adopted March 16, 1994, by the Initiative Title Setting Review Bd.*, 875 P.2d 861, 864 (Colo. 1994). When setting a title, the overriding consideration is to avoid ““public confusion that might be caused by misleading titles and shall, whenever practicable, avoid titles for which the general understanding of the effect of a “yes” or “no” vote will be unclear.”” *Id.* (quoting C.R.S. § 1-40-106(3)(b).) Further, “[t]he purpose of the title setting process is to ensure that both [the] persons reviewing an initiated petition and the voters are fairly and succinctly advised of the import of the proposed law.”” *Id.* (quoting *In re Proposed Initiative on Education Tax Refund*, 823 P.2d 1353, 1355 (Colo. 1991).)

b. The TABOR Notices were misleading

The TABOR Notice includes the Ballot Title language, and was unclear, resulting in confusion, because it suggested that all that was necessary to construct an entirely new gondola system (to the tune of approximately \$65 million (Ex. 1) was 3A’s approval:

- Providing necessary funding to continue gondola service between Telluride and Mountain Village and prevent a shutdown of the gondola after December 31, 2027;
- Maintaining and improving the level of SMART’s bus transit service; with 87.8% of the **new revenue raised annually pursuant to this question being used for the purpose of funding gondola capital improvements** and paying for the operation and maintenance of the gondola.

[Ex. 1 (emphasis added)]

A capital improvement is adding a permanent structural change or restoring some aspect of a property that will either enhance the property's overall value, prolong its useful life, or adapt it to new uses. See <https://www.investopedia.com/terms/c/capitalimprovement.asp>. Following the September 5 approval of the ballot title and text for 3A, there was a what appeared to be a coordinated effort to produce information insinuating that 3A would allow a new gondola system to be built with the tax increases sought by the measure or by the acquisition of new debt. The following are examples of Contestees’ consistent messaging concerning this Ballot measure, which consistently indicated that part of this measure was to allow the construction of a new gondola to replace the existing structure and that these new funds would allow that to happen:

Sept. 19, 2024, TOT Resolution: “WHEREAS, Question 3A creates a new funding source spread over different user groups to keep the gondola running and create a capital reserve for building a new gondola. (Ex. 2)

Sept. 19, 2024, TMV Resolution: “WHEREAS, 3A creates a new funding source spread over different user groups to keep the gondola running and create a capital reserve for building a new gondola. (Ex. 3)

Sept. 19, 2024, TMV Press Release: The future replacement of the gondola system is expected to cost at least \$60 million, with funding likely to come from local contributions, state and federal grants, and additional sources. (Ex. 7)

Sept. 18, 2024, County Resolution: “WHEREAS, Initiative 3A creates a new funding source spread over different user groups to keep the gondola running and create a capital reserve for building a new gondola. (Ex. 4)

SMART Sept. 19, 2024 press release: Funding collected in 2025, 2026, and 2027, will be used to set up a gondola operations and capital reserve at SMART, to be used to sustain future operations and support a portion of the future rebuild of the gondola system. (Ex. 6)

Town of Telluride Sept. 19 Press release: “Gondola Operations and Replacement: 87.8% of the funds will be restricted to support gondola operations and establish a capital reserve for a portion of a new gondola system. These funds will ensure the system continues to serve the community beyond 2027 and will support future capital needs for a replacement system projected to cost at least \$60 million.” (Ex. 9)

Mr. David Avrill, the Executive Director of SMART also continued to state the need to replace the gondola and the need to support ballot measure 3A to allow that to happen. Mr. Avrill told the *Telluride Daily Planet*:

Averill said those additional funds would go toward bus service and highlighted ‘the eventual rebuild of the gondola machine’ as the focus of the funding. “We all know that this machine, at some point, needs to be replaced, and so we're actively planning for that,” Averill said.

Our current gondola system has more operating hours on it than any other comparable gondola system in the world — something like 130,000 hours of operation,’ Averill told the Planet in response to Balkind’s concerns. ‘The conventional wisdom is 30-40 years at best, which we are nearing.’

He noted that in addition to parts being hard to find, some of the original equipment manufacturers no longer support maintenance of the system because they are no longer in business.”

Telluride Daily Planet, Oct. 24, 2024 (Ex. 15).

In this case, there is an issue of whether the public was misled by the suggested effect of a “YES” vote on 3A. In light of the known and public desire and decision by the Gondola Leadership Committee in 2022 to seek a replacement Gondola system (Ex. 12 and 13), there was a reasonable expectation of Masson and other voters that this measure had the *dual* purpose of changing the funding source and approving the replacement of the current system with an entirely new system paid for with this tax increase. The evidence shows the messaging of this ballot measure indicated

that not only was this ballot measure a tax increase but also the means to obtain a new gondola system. Kerry Donovan, the campaign strategist hired by SMART, expressed the importance of this messaging at the April 15, 2024, Gondola Committee meeting to avoid a “spreadsheet” election only about tax increases.

Many people, including the Contestor, believed the reference to capital improvements was explicitly related to using the new funds to replace the Gondola with a new system rather than maintaining the current system. But even so, the applicable language, coupled with the public statements, are misleading as a matter of law. There is a high likelihood that many people who voted YES on 3A understood that a YES vote would allow SMART sufficient funds to construct a new Gondola system without incurring any additional costs in the future. Raising the funds necessary to re-construct the Gondola without additional tax or debt to match the \$65 million re-construction costs would have been impossible. (Exs. 14.)

This misleading “messaging” was compounded when the Town of Telluride, the Town of Mountain Village and the Board of County Commissioners approved substantially identical language in their resolutions approving the measure. (Exs. 2, 3 & 4.) These resolutions, together with the press releases on the subject, all discussed the importance of passing 3A in order to “create a capital reserve for building a new Gondola.” (Ex. 2, 3, 4, 6, 7, 8, 9, 10) ⁷ Although it may be true that 3A would allow funds to be saved to help with a future down payment on a new gondola system, the other implication is that approval of the “capital reserve” meant there was nothing

⁷ The reason all of the press releases are relevant is that all of the public entities had representatives on the Gondola Leadership Committee, as well as on the SMART board, and Kerry Donovan of Ulysses initially wrote all the resolutions and press releases in a coordinate manner.

more to do in order to approve the acquisition of debt, bonding or otherwise to take the next step and use \$60 to \$65 million, or likely more, of the public's money to build the new system.

c. Statutorily required language was missing from the Ballot Title and therefore the TABOR Notice.

The misleading impact of Ballot Issue 3A is further compounded by statutorily-required language that was missing. Colorado law defines a ballot title as meaning “the language which is printed on the ballot which is comprised of the submission clause and the title.” C.R.S. § 1-40-102(2). The TABOR notice that included the full Ballot Title language failed to comply with the statutorily required ballot title language because C.R.S. § 1-40-60 requires that for “measures that increase tax revenue for any district through a tax change,” after the constitutionally mandated language of TABOR at § (3)⁸ that “the ballot title shall state “in order to increase or improve levels of public services, including, but not limited to (the public service specified in the measure)...” Nowhere in the required TABOR notice are the required language specified in C.R.S. § 1-40-60. (Ex. 1.)⁹

VII CONCLUSION

In light of the foregoing, Contestor respectfully request the following ruling by this court on the following issues:

⁸ This is case such language was “NOTICE OF ELECTION TO INCREASE TAXES/ ON A REFERRED MEASURE” and was included in the TABOR notice and Ballot Title.

⁹ It is important to note that under the August 2024 Memorandum of Understanding for this coordinated election that included the SMART ballot measure 3A, “SAN MIGUEL COUNTY shall be solely responsible for the preparation, accuracy, and language of the TABOR Notice.” (Ex. 11 at 2). As such, this error appears to be attributable to the County.

The first question is whether Contestees provide sufficient reasonable notice of the ballot measure 3A for opponents to submit constitutionally mandated statements of opposition to the measure. Contestor asserts this answer must be that insufficient notice was provided to opponents.

The second question is whether Measure 3A's required TABOR ballot notice under the COLO. CONST. Art. X § 20 was misleading and failed to comply with the language requirements of C.R.S. § 1-40-60. For the reason explained above, Contestor asserts the answer to this question must be yes.

Based on both or either of the two issue determinations, Contestor requests this court overturn the vote of 3A.

DATED: April 16, 2025.

STARRITT LEGAL LLC

/s/ Sam D. Starritt

Sam D. Starritt, #27876

Attorney for Contestor Emily Masson

CERTIFICATE OF SERVICE

I hereby certify that on this 16th day of April, 2025, I served the foregoing brief on all parties and counsel of record by utilizing the Colorado Courts Efiling System.

Sam D. Starritt

Sam D. Starritt, Attorney for Contestor